

## 21STCV26907 21STCV26907

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-10

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C731%2C09%2F10%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C731%2C09%2F10%2F2026)

Source SHA-256: e292cadac494ec1019d4d8a9d2e090c918c1c36d1567b89cb942dd0aaf711528

Case Number: 21STCV26907 Hearing Date: September 10, 2026 Dept: 731

[TENTATIVE] ORDER RE:

DEFENDANT RINAT Klier ERLICH'S MOTION TO APPEAR REMOTELY AT TRIAL

Moving Party: Counsel, Rinat Klier Erlich

Opposing Party: None

Notice: OK

Now before the Court is counsel Rinat

Klier Erlich's motion to be relieved as counsel for Defendants Marcus

Murchinson, Tree of Life Missionary Baptist Church, and Watts Up Community

Development Corporation, originally set for hearing on November 5, 2026, and

advanced to September 9, 2026, by court order on August 19, 2026.

The Court's review shows that counsel's

moving papers do not satisfy the requirements of California Rules of Court,

rule 3.1362. Besides typographical errors in various of the papers (e.g., in

Date Action Filed), and without commenting on substantive deficiencies within

the papers themselves, the moving papers do not show that Defendants themselves

were served with the motions, with counsel's August 12, 2026, proof of service

showing only service by email on counsel for Plaintiff.

Separately, trial in this action is

set for October 23, 2026, almost completely foreclosing Defendants' ability to

find substitute counsel to defend this action at trial, which is itself a

ground for denial. (See Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904,

915 [court should consider whether the attorney's "withdrawal can be

accomplished without undue prejudice to the client's interests"].)

Moreover, withdrawal of counsel would likely result in delay of proceedings by trial continuance, where the entity Defendants cannot appear in pro per and may suffer a default for lack of representation, another ground for denial. (See *Mandell v. Superior Court* (1977) 67 Cal.App.3d 1, 4 [motion should be denied if it will cause undue delay in the proceeding or cause injustice].)

The Court accordingly DENIES counsel's motion.

Defendants are to give notice.

Parties who intend to submit on this tentative must send an email to the court at [smcdept731@lacourt.org](mailto:smcdept731@lacourt.org) indicating intention to submit on the tentative as directed by the instructions provided on the court website at [www.lacourt.org](http://www.lacourt.org). If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.